ZONING COMPLIANCE LETTER

Eastlake Ridgeline Collegiate Commons | Birmingham, AL

Subject	Zoning verification for Eastlake Ridgeline Collegiate Commons
Address	1053 Railroad Avenue, Birmingham, AL 85938
Date	April 17, 2022
Zoning District	39-39

Zoning Classification

Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality. A certificate of occupancy was issued on file for the existing improvements. The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty. There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter.

There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter. Parking is conforming with 43 spaces provided versus 43 spaces required by code. A certificate of occupancy was issued on file for the existing improvements. Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality.

Code Compliance

There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter. A certificate of occupancy was issued on file for the existing improvements. Parking is conforming with 20 spaces provided versus 20 spaces required by code. Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality. The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty.

There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter. The property is zoned in accordance with the Birmingham Unified Development Ordinance and the current use is a legally permitted use. The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty. Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality. A certificate of occupancy was issued on file for the existing improvements.

Code Compliance

The property is zoned in accordance with the Birmingham Unified Development Ordinance and the current use is a legally permitted use. Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality. Parking is conforming with 16 spaces provided versus 16 spaces required by code. There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter. A certificate of occupancy was issued on file for the existing improvements. The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty.

A certificate of occupancy was issued on file for the existing improvements. The property is zoned in accordance with the Birmingham Unified Development Ordinance and the current use is a legally permitted use. There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter. The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty.

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Permitted Uses and Parking

A certificate of occupancy was issued on file for the existing improvements. Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality. There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter. The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty. Parking is conforming with 22 spaces provided versus 22 spaces required by code. The property is zoned in accordance with the Birmingham Unified Development Ordinance and the current use is a legally permitted use.

Parking is conforming with 20 spaces provided versus 20 spaces required by code. There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter. Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality. The property is zoned in accordance with the Birmingham Unified Development Ordinance and the current use is a legally permitted use. A certificate of occupancy was issued on file for the existing improvements.

Permitted Uses and Parking

There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter. A certificate of occupancy was issued on file for the existing improvements. The property is zoned in accordance with the Birmingham Unified Development Ordinance and the current use is a legally permitted use. The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty.

Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality. The property is zoned in accordance with the Birmingham Unified Development Ordinance and the current use is a legally permitted use. The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty. A certificate of occupancy was issued on file for the existing improvements. Parking is conforming with 48 spaces provided versus 48 spaces required by code. There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter.

Zoning Classification

Parking is conforming with 48 spaces provided versus 48 spaces required by code. The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty. The property is zoned in accordance with the Birmingham Unified Development Ordinance and the current use is a legally permitted use. Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality. A certificate of occupancy was issued on file for the existing improvements. There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter.

Parking is conforming with 48 spaces provided versus 48 spaces required by code. The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty. The property is zoned in accordance with the Birmingham Unified Development Ordinance and the current use is a legally permitted use. A certificate of occupancy was issued on file for the existing improvements.

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Site Description

Utilities, including electric, natural gas and telecommunications, are available to the site from the street. Soils are typical of the region and no evidence of unsuitable conditions was observed at the time of inspection. The site is not located within a designated 100-year floodplain according to the FEMA flood map in effect. Surrounding land uses include residential, commercial and light industrial properties of similar vintage. Access to the site is provided by 19 curb cuts and the property is served by municipal water and sanitary sewer. The site contains approximately 19.19 acres and is generally level with frontage along Railroad Avenue.

Utilities, including electric, natural gas and telecommunications, are available to the site from the street. The site is not located within a designated 100-year floodplain according to the FEMA flood map in effect. Soils are typical of the region and no evidence of unsuitable conditions was observed at the time of inspection. Access to the site is provided by 16 curb cuts and the property is served by municipal water and sanitary sewer.

Code Compliance

There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter. The property is zoned in accordance with the Birmingham Unified Development Ordinance and the current use is a legally permitted use. A certificate of occupancy was issued on file for the existing improvements. Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality. Parking is conforming with 42 spaces provided versus 42 spaces required by code. The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty.

Parking is conforming with 19 spaces provided versus 19 spaces required by code. The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty. There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter. A certificate of occupancy was issued on file for the existing improvements. The property is zoned in accordance with the Birmingham Unified Development Ordinance and the current use is a legally permitted use.

Site Description

Soils are typical of the region and no evidence of unsuitable conditions was observed at the time of inspection. The site is not located within a designated 100-year floodplain according to the FEMA flood map in effect. Access to the site is provided by 37 curb cuts and the property is served by municipal water and sanitary sewer. Surrounding land uses include residential, commercial and light industrial properties of similar vintage. The site contains approximately 3.3 acres and is generally level with frontage along Railroad Avenue.

Access to the site is provided by 8 curb cuts and the property is served by municipal water and sanitary sewer. The site contains approximately 9.9 acres and is generally level with frontage along Railroad Avenue. Utilities, including electric, natural gas and telecommunications, are available to the site from the street. Surrounding land uses include residential, commercial and light industrial properties of similar vintage. Soils are typical of the region and no evidence of unsuitable conditions was observed at the time of inspection. The site is not located within a designated 100-year floodplain according to the FEMA flood map in effect.

Permitted Uses and Parking

The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty. Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality. The property is zoned in accordance with the Birmingham Unified Development Ordinance and the current use is a legally permitted use. Parking is conforming with 25 spaces provided versus 25 spaces required by code.

Parking is conforming with 32 spaces provided versus 32 spaces required by code. There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter. A certificate of occupancy was issued on file for the existing improvements. Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality.

Site Description

Utilities, including electric, natural gas and telecommunications, are available to the site from the street. The site contains approximately 7.7 acres and is generally level with frontage along Railroad Avenue. The site is not located within a designated 100-year floodplain according to the FEMA flood map in effect. Access to the site is provided by 25 curb cuts and the property is served by municipal water and sanitary sewer.

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Zoning Classification

The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty. A certificate of occupancy was issued on file for the existing improvements. The property is zoned in accordance with the Birmingham Unified Development Ordinance and the current use is a legally permitted use. Parking is conforming with 48 spaces provided versus 48 spaces required by code. Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality. There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter.

The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty. A certificate of occupancy was issued on file for the existing improvements. There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter. Parking is conforming with 13 spaces provided versus 13 spaces required by code.

Permitted Uses and Parking

There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter. The property is zoned in accordance with the Birmingham Unified Development Ordinance and the current use is a legally permitted use. A certificate of occupancy was issued on file for the existing improvements. The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty.

Parking is conforming with 18 spaces provided versus 18 spaces required by code. The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty. Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality. The property is zoned in accordance with the Birmingham Unified Development Ordinance and the current use is a legally permitted use. There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter. A certificate of occupancy was issued on file for the existing improvements.

Zoning Classification

The property is zoned in accordance with the Birmingham Unified Development Ordinance and the current use is a legally permitted use. The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty. Parking is conforming with 46 spaces provided versus 46 spaces required by code. There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter. Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality. A certificate of occupancy was issued on file for the existing improvements.

A certificate of occupancy was issued on file for the existing improvements. There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter. Parking is conforming with 29 spaces provided versus 29 spaces required by code. The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty.

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Access and Utilities

Access to the site is provided by 42 curb cuts and the property is served by municipal water and sanitary sewer. Surrounding land uses include residential, commercial and light industrial properties of similar vintage. The site contains approximately 10.10 acres and is generally level with frontage along Railroad Avenue. The site is not located within a designated 100-year floodplain according to the FEMA flood map in effect.

The site contains approximately 42.42 acres and is generally level with frontage along Railroad Avenue. Soils are typical of the region and no evidence of unsuitable conditions was observed at the time of inspection. The site is not located within a designated 100-year floodplain according to the FEMA flood map in effect. Access to the site is provided by 19 curb cuts and the property is served by municipal water and sanitary sewer.

Permitted Uses and Parking

Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality. The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty. The property is zoned in accordance with the Birmingham Unified Development Ordinance and the current use is a legally permitted use. There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter. A certificate of occupancy was issued on file for the existing improvements. Parking is conforming with 32 spaces provided versus 32 spaces required by code.

Parking is conforming with 30 spaces provided versus 30 spaces required by code. The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty. The property is zoned in accordance with the Birmingham Unified Development Ordinance and the current use is a legally permitted use. There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter. A certificate of occupancy was issued on file for the existing improvements.

Access and Utilities

The site is not located within a designated 100-year floodplain according to the FEMA flood map in effect. Soils are typical of the region and no evidence of unsuitable conditions was observed at the time of inspection. Surrounding land uses include residential, commercial and light industrial properties of similar vintage. Access to the site is provided by 33 curb cuts and the property is served by municipal water and sanitary sewer. Utilities, including electric, natural gas and telecommunications, are available to the site from the street. The site contains approximately 33.33 acres and is generally level with frontage along Railroad Avenue.

Soils are typical of the region and no evidence of unsuitable conditions was observed at the time of inspection. The site contains approximately 16.16 acres and is generally level with frontage along Railroad Avenue. Utilities, including electric, natural gas and telecommunications, are available to the site from the street. Access to the site is provided by 3 curb cuts and the property is served by municipal water and sanitary sewer.

Permitted Uses and Parking

Parking is conforming with 40 spaces provided versus 40 spaces required by code. The property is zoned in accordance with the Birmingham Unified Development Ordinance and the current use is a legally permitted use. There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter. Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality.

There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter. The property is zoned in accordance with the Birmingham Unified Development Ordinance and the current use is a legally permitted use. A certificate of occupancy was issued on file for the existing improvements. Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality. The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty.

Access and Utilities

The site contains approximately 39.39 acres and is generally level with frontage along Railroad Avenue. The site is not located within a designated 100-year floodplain according to the FEMA flood map in effect. Surrounding land uses include residential, commercial and light industrial properties of similar vintage. Utilities, including electric, natural gas and telecommunications, are available to the site from the street. Access to the site is provided by 15 curb cuts and the property is served by municipal water and sanitary sewer. Soils are typical of the region and no evidence of unsuitable conditions was observed at the time of inspection.

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Zoning Classification

Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality. Parking is conforming with 48 spaces provided versus 48 spaces required by code. A certificate of occupancy was issued on file for the existing improvements. There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter. The property is zoned in accordance with the Birmingham Unified Development Ordinance and the current use is a legally permitted use.

Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality. The property is zoned in accordance with the Birmingham Unified Development Ordinance and the current use is a legally permitted use. There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter. A certificate of occupancy was issued on file for the existing improvements.

Permitted Uses and Parking

The property is zoned in accordance with the Birmingham Unified Development Ordinance and the current use is a legally permitted use. There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter. A certificate of occupancy was issued on file for the existing improvements. Parking is conforming with 18 spaces provided versus 18 spaces required by code. Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality. The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty.

There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter. Parking is conforming with 26 spaces provided versus 26 spaces required by code. The property is zoned in accordance with the Birmingham Unified Development Ordinance and the current use is a legally permitted use. Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality. A certificate of occupancy was issued on file for the existing improvements.

Zoning Classification

Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality. A certificate of occupancy was issued on file for the existing improvements. There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter. Parking is conforming with 24 spaces provided versus 24 spaces required by code. The property is zoned in accordance with the Birmingham Unified Development Ordinance and the current use is a legally permitted use.

A certificate of occupancy was issued on file for the existing improvements. The property is zoned in accordance with the Birmingham Unified Development Ordinance and the current use is a legally permitted use. Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality. The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty.

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Site Description

Access to the site is provided by 48 curb cuts and the property is served by municipal water and sanitary sewer. The site contains approximately 8.8 acres and is generally level with frontage along Railroad Avenue. Soils are typical of the region and no evidence of unsuitable conditions was observed at the time of inspection. Utilities, including electric, natural gas and telecommunications, are available to the site from the street.

Soils are typical of the region and no evidence of unsuitable conditions was observed at the time of inspection. Surrounding land uses include residential, commercial and light industrial properties of similar vintage. Access to the site is provided by 22 curb cuts and the property is served by municipal water and sanitary sewer. The site is not located within a designated 100-year floodplain according to the FEMA flood map in effect. Utilities, including electric, natural gas and telecommunications, are available to the site from the street.

Permitted Uses and Parking

The property is zoned in accordance with the Birmingham Unified Development Ordinance and the current use is a legally permitted use. Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality. Parking is conforming with 31 spaces provided versus 31 spaces required by code. A certificate of occupancy was issued on file for the existing improvements. There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter. The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty.

There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter. Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality. Parking is conforming with 37 spaces provided versus 37 spaces required by code. The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty. A certificate of occupancy was issued on file for the existing improvements.

Access and Utilities

The site is not located within a designated 100-year floodplain according to the FEMA flood map in effect. Utilities, including electric, natural gas and telecommunications, are available to the site from the street. The site contains approximately 25.25 acres and is generally level with frontage along Railroad Avenue. Soils are typical of the region and no evidence of unsuitable conditions was observed at the time of inspection. Surrounding land uses include residential, commercial and light industrial properties of similar vintage.

The site contains approximately 15.15 acres and is generally level with frontage along Railroad Avenue. The site is not located within a designated 100-year floodplain according to the FEMA flood map in effect. Soils are typical of the region and no evidence of unsuitable conditions was observed at the time of inspection. Utilities, including electric, natural gas and telecommunications, are available to the site from the street. Access to the site is provided by 6 curb cuts and the property is served by municipal water and sanitary sewer.

Permitted Uses and Parking

Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality. The property is zoned in accordance with the Birmingham Unified Development Ordinance and the current use is a legally permitted use. The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty. A certificate of occupancy was issued on file for the existing improvements. Parking is conforming with 25 spaces provided versus 25 spaces required by code. There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter.

There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter. The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty. A certificate of occupancy was issued on file for the existing improvements. Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality.

Site Description

Utilities, including electric, natural gas and telecommunications, are available to the site from the street. Access to the site is provided by 47 curb cuts and the property is served by municipal water and sanitary sewer. The site is not located within a designated 100-year floodplain according to the FEMA flood map in effect. The site contains approximately 40.40 acres and is generally level with frontage along Railroad Avenue. Surrounding land uses include residential, commercial and light industrial properties of similar vintage.

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Permitted Uses and Parking

Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality. A certificate of occupancy was issued on file for the existing improvements. The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty. Parking is conforming with 17 spaces provided versus 17 spaces required by code. The property is zoned in accordance with the Birmingham Unified Development Ordinance and the current use is a legally permitted use.

Parking is conforming with 29 spaces provided versus 29 spaces required by code. Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality. There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter. The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty.

Permitted Uses and Parking

The property is zoned in accordance with the Birmingham Unified Development Ordinance and the current use is a legally permitted use. Parking is conforming with 15 spaces provided versus 15 spaces required by code. A certificate of occupancy was issued on file for the existing improvements. Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality. The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty.

A certificate of occupancy was issued on file for the existing improvements. Parking is conforming with 43 spaces provided versus 43 spaces required by code. Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality. The property is zoned in accordance with the Birmingham Unified Development Ordinance and the current use is a legally permitted use.

Permitted Uses and Parking

Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality. There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter. The property is zoned in accordance with the Birmingham Unified Development Ordinance and the current use is a legally permitted use. The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty. A certificate of occupancy was issued on file for the existing improvements. Parking is conforming with 8 spaces provided versus 8 spaces required by code.

The property is zoned in accordance with the Birmingham Unified Development Ordinance and the current use is a legally permitted use. The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty. A certificate of occupancy was issued on file for the existing improvements. Parking is conforming with 16 spaces provided versus 16 spaces required by code. Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality. There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter.

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Site Description

Soils are typical of the region and no evidence of unsuitable conditions was observed at the time of inspection. Access to the site is provided by 6 curb cuts and the property is served by municipal water and sanitary sewer. The site is not located within a designated 100-year floodplain according to the FEMA flood map in effect. Utilities, including electric, natural gas and telecommunications, are available to the site from the street.

Access to the site is provided by 32 curb cuts and the property is served by municipal water and sanitary sewer. Utilities, including electric, natural gas and telecommunications, are available to the site from the street. The site is not located within a designated 100-year floodplain according to the FEMA flood map in effect. Soils are typical of the region and no evidence of unsuitable conditions was observed at the time of inspection.

Code Compliance

Parking is conforming with 19 spaces provided versus 19 spaces required by code. A certificate of occupancy was issued on file for the existing improvements. The property is zoned in accordance with the Birmingham Unified Development Ordinance and the current use is a legally permitted use. Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality.

There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter. Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality. The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty. A certificate of occupancy was issued on file for the existing improvements.

Topography and Flood Zone

Surrounding land uses include residential, commercial and light industrial properties of similar vintage. The site contains approximately 7.7 acres and is generally level with frontage along Railroad Avenue. Utilities, including electric, natural gas and telecommunications, are available to the site from the street. The site is not located within a designated 100-year floodplain according to the FEMA flood map in effect. Soils are typical of the region and no evidence of unsuitable conditions was observed at the time of inspection.

The site is not located within a designated 100-year floodplain according to the FEMA flood map in effect. Access to the site is provided by 8 curb cuts and the property is served by municipal water and sanitary sewer. Utilities, including electric, natural gas and telecommunications, are available to the site from the street. Soils are typical of the region and no evidence of unsuitable conditions was observed at the time of inspection. Surrounding land uses include residential, commercial and light industrial properties of similar vintage.

Code Compliance

There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter. Parking is conforming with 5 spaces provided versus 5 spaces required by code. The property is zoned in accordance with the Birmingham Unified Development Ordinance and the current use is a legally permitted use. Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality. The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty.

Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality. There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter. The property is zoned in accordance with the Birmingham Unified Development Ordinance and the current use is a legally permitted use. Parking is conforming with 41 spaces provided versus 41 spaces required by code. A certificate of occupancy was issued on file for the existing improvements. The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty.

Topography and Flood Zone

Soils are typical of the region and no evidence of unsuitable conditions was observed at the time of inspection. The site contains approximately 24.24 acres and is generally level with frontage along Railroad Avenue. Access to the site is provided by 3 curb cuts and the property is served by municipal water and sanitary sewer. The site is not located within a designated 100-year floodplain according to the FEMA flood map in effect. Utilities, including electric, natural gas and telecommunications, are available to the site from the street.

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Signatures

IN WITNESS WHEREOF, the parties have executed this instrument as of the date first written above.

_____

Eastlake Ridgeline Collegiate Commons Owner LLC

By: Sofia Walker Title: Manager Date: 04/17/2022

_____

Samuel Hughes

By: Elena Jackson Title: President Date: 04/17/2022

Exhibit A - Property

Eastlake Ridgeline Collegiate Commons, 1053 Railroad Avenue, Birmingham, AL 85938. Parcel containing approximately 18.31 acres, together with all improvements thereon.

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